

DEPARTMENT OF THE NAVY
NAVSUP WSS
5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg		Type	A1	
Folder #		241210052		PD #	N0010424X4575	
Item Manager	Luedecke, Richard	Work Function	Planner	Phone		Code N96161.07
Technician	Bartlett, Richard	Work Function	Reprocurement Technician	Phone		Code N9652.12
Buyer	Ream, Sarah	Work Function	Contract Specialist	Phone		Code N7M2

2. Description of the Action Being Approved

Description Negotiation and award of a contract through other than full and open competition.

3. Description of Supplies/Servies

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	ANTENNA	Quantity	9
NSN	7GH 5985 016051950	Cage Code	

P/N		2099-100-82 / 2099-100-90		Unit Price	\$114,879.00
Option		N		Option %	Days
Estimated Value		\$1,033,911.00			
Ship To					
		Period of Performance: Expected Final Delivery Date		05/10/2025	
Line of Accounting		97 00 XX XX 4930 NC1A 000 81004 0 050120 7R 000000 8PMC00000000			

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

Per the information listed below Frontgrade Technologies Inc. (CAGE: 66544) is the only source approved to fulfill this obligation. Cobham Exeter Inc. (CAGE: 60188) Higher level owner CAES was the previous source. Veritas Capital acquired CAES Space Systems company on January 9, 2023. Due to this acquisition, the company is rebranded Frontgrade Technologies. Frontgrade Technologies Inc. is currently the only source that can make this item. There are no know authorized distributors. The government does not own the data or the rights to the data needed to purchase this part from additional sources. The government failed to purchase the necessary technical data needed to manufacture this ANTENNA. Frontgrade Technologies Inc. (CAGE: 66544) is the design control authority for manufacturing this component and has expertise needed to produce. This item is required for fleet readiness.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

05/23/2024

and as a result

No responses from interested vendors were received.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

A technical review, which consisted of searching several Government databases including ITIMP, FLIS and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved sourced of supply, historical sources of supply and past contracts. Based on this market research the contracting officer has determined that the only known manufacturing sources are Frontgrade Technologies Inc. (CAGE: 66544). If a company other than the one listed believes they have a compatible product, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office will test and evaluate the item at the company's expense. Upon qualification, the approved company will be able to participate in future solicitations. ITIMP- Reviewed award history and other potential sources of supply, AMC/AMSC code, part number, CAGE code. ERP- Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding which all matched with ITIMP NSEDR- No drawings available. LMS 21- Reviewed CCF data, source of supply, part number, registered users and requirements.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A No Previous J&A - Previously awarded under the SAT

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By	Richard Bartlett	Work Function	Reprocurement Technician	Created Date	05/10/2024
					10-MAY-24

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Richard Luedecke [Redacted Signature]	Work Function	Planner	Requirements Cognizance Signature Date	05/14/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Richard Bartlett [Redacted Signature]	Work Function	Reprocurement Technician	Technical Cognizance Signature Date	05/10/2024
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As of this date, I confirm KO has reviewed the information contained in this J&A and determined sufficient for purposes of processing/ completing Small Business Coordination Record DD2579

KO Review for Small Business Concurrence	Troy Cobaugh [Redacted Signature]	Work Function	Contract Specialist	KO Review for Small Business Concurrence Date	06/04/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Justin Long [Redacted Signature]	Work Function	Contract Specialist	Contracting Officer Certification Signature Date	06/27/2024
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	Adam Johnson [Redacted Signature]	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	06/27/2024
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I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature	Thomas Workman [Redacted Signature]	Work Function	Attorney	Legal Sufficiency Review Signature Date	07/18/2024
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I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required By Far 6.304 Signature	John Sweeney [Redacted Signature]	Work Function	Competition Advocate	Approval Required By Far 6.304 Signature Date	07/29/2024
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